

22STCV15874 22STCV15874

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-22

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Case Number: 22STCV15874 Hearing Date: July 22, 2026 Dept: 407

Final Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: N/A

CASE: Brandon Hoxey, et

al. v. Icehouse Ventures V, LLC, et al.

CASE NO.: 22STCV15874

PLAINTIFF'S

EX PARTE MOTION TO ENFORCE SETTLEMENT AGREEMENT;

SANCTIONS,

AND FOR AWARD OF ATTORNEY FEES OF \$12,700

I. INTRODUCTION

Plaintiff Brandon Hoxey moves ex parte for an order enforcing the parties' settlement agreement pursuant to Code of Civil Procedure section 664.6 and entering judgment in Plaintiff's favor. Plaintiff argues ex parte relief is necessary because Defendant Icehouse Ventures V, LLC failed to make any payments under the parties' Settlement Agreement.

For the

reasons stated herein, the Ex Parte Application is DENIED.

II. DISCUSSION

Pursuant to Code of Civil Procedure section 166(a)(4), the court rules on Plaintiff's Ex Parte Application in chambers.

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‘A court will not grant ex parte relief ‘in any but the plainest and most certain of cases.’ (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal.App.5th 253, 257.) Substantively, ‘[a]n applicant must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte.’ (Cal. Rules of Court, rule 3.1202(c) ‘A trial court should deny an ex parte application absent the requisite showing.’ (People ex rel. Allstate Ins. Co., at p. 257.)” (Newsom v. Superior Court (Sutter County) (2020) 51 Cal.App.5th 1093.)

Here,

Plaintiff does not make this requisite showing.

Moreover, Code of Civil Procedure section 664.6 requires the filing of a noticed motion to enforce an agreement and enter judgment. Accordingly, the court will set this matter for hearing.

III. CONCLUSION

For the foregoing reasons, Plaintiff's Ex Parte Application is Denied.

The court

sets a hearing for Plaintiff's motion to enforce settlement agreement pursuant to CCP section 664.6 on August 24, 2026 at 8:30 a.m. The court construes Plaintiff's ex parte application as the moving papers.

Opposition and reply papers are to be filed pursuant to Code of Civil Procedure section 1005.

The clerk

of the court to give notice.

Dated: July 22, 2026

Brock T. Hammond

Judge of the Superior Court